

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Colin Gardner	Team: Squad #11	CCRB Case #: 201601217	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 02/15/2016 10:36 AM	Location of Incident: North-east corner of Cross Bronx Expressway and Powell Avenue	Precinct: 43	18 Mo. SOL 8/15/2017	EO SOL 8/15/2017	
Date/Time CV Reported Mon, 02/15/2016 11:54 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 02/15/2016 11:54 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POF Jacklyn Villanueva	12144	954405	043 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POF Jacklyn Villanueva	Abuse: PO Jacklyn Villanueva threatened to arrest § 87(2)(b) [REDACTED]	[REDACTED]

Case Summary

On February 15, 2016, at approximately 10:36 a.m., § 87(2)(b) was driving with his girlfriend, § 87(2)(b) and her two children § 87(2)(b) and § 87(2)(b) when he was pulled over by PO Jacklyn Villanueva from the 43rd Precinct on the Northeast corner of Cross Bronx Expressway and Powell Avenue in the Bronx. § 87(2)(b) raised his voice to argue the summonses he was issued and PO Villanueva told § 87(2)(b) “Calm down, calm down, or I’ll run you in” (**Allegation A**). § 87(2)(b) was issued four summonses regarding this incident (**see Board Review 6**).

There is no video footage for this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- § 87(2)(b) did not file a Notice of Claim regarding this incident (**see Board Review 7**).

Civilian and Officer CCRB Histories

- § 87(2)(b) was previously the complainant / victim in one other CCRB case § 87(2)(b) (see Board Review 5).
- PO Jacklyn Villanueva has been a member of the service for 3 years and this is the first complaint filed against her.

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(g)
- Both § 87(2)(b) and PO Villanueva stated that § 87(2)(b)'s license landed on his dashboard, except § 87(2)(b) used the word "thrown," and PO Villanueva stated that she dropped § 87(2)(b)'s documents on the dashboard from one inch away after he refused to take them back.

Allegation A – Abuse of Authority: PO Jacklyn Villanueva threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that after he was pulled over by PO Villanueva, she approached his vehicle and said, “I saw the whole thing.” § 87(2)(b) argued with PO Villanueva about the violations she witnessed. § 87(2)(b) commit before § 87(2)(b) provided his license to her and requested that PO Villanueva not give him a ticket. PO Villanueva walked back to the police vehicle and returned to § 87(2)(b)'s vehicle approximately 15 -16 minutes later with four summonses and handed them to § 87(2)(b). PO Villanueva did not attempt to return § 87(2)(b)'s license at this point. § 87(2)(b) raised his voice and argued that he was not in the wrong in this situation. PO Villanueva told § 87(2)(b) “Calm down, calm down,” after § 87(2)(b) continued to argue with her. § 87(2)(b) responded, “No I’m not calming down, that’s not right. How am I getting tickets when you saw the whole thing?” § 87(2)(b) continued arguing about the summonses with PO Villanueva in a loud tone of voice and then PO Villanueva threw § 87(2)(b)'s license onto his dashboard. PO Villanueva then said, “Calm down, calm down, or I’ll run you in.” PO Villanueva did not explain why she would arrest § 87(2)(b). PO Villanueva started walking back towards the police vehicle and § 87(2)(b) yelled “Bitch” at her before she returned to the police vehicle. § 87(2)(b) exited his vehicle after PO Villanueva left the scene in order to document the street name **(see Board Review 1)**.

§ 87(2)(b) stated that she was sitting in the back seat of § 87(2)(b)'s vehicle during this incident. § 87(2)(b) confirmed the argument § 87(2)(b) had with PO Villanueva in raised voices about the issuance of the summonses. § 87(2)(b) told § 87(2)(b) to, “Calm down and forget about it. Just go to traffic court, you don’t have to argue with her.” § 87(2)(b) heard PO Villanueva tell § 87(2)(b) to, “Bring it down,” but she did not hear PO Villanueva tell § 87(2)(b) that she would “Run him in” if he did not calm down **(see Board Review 2)**.

PO Villanueva stated that § 87(2)(b) started yelling at PO Villanueva, “He was already stopped there, he was just standing there!” after she explained the reason she had pulled him over. PO Villanueva eventually obtained § 87(2)(b)'s license and returned to § 87(2)(b)'s vehicle a few minutes later with the summonses in her hand. PO Villanueva tried to explain the reasons for all of the summonses. PO Villanueva believed her demeanor was calm and professional as she spoke to § 87(2)(b) as she did not raise her voice or curse at any point. § 87(2)(b) responded by yelling, “You’re going to give me a fucking ticket?!” § 87(2)(b) was also grabbing his steering wheel with both hands at this point and started shaking the steering wheel, and did not take the summonses. § 87(2)(b) then started yelling, “This isn’t fair! How are you going to give me a ticket when I didn’t do anything!” PO Villanueva then told § 87(2)(b) “You’re not going to make this any worse, you could be arrested for disorderly conduct.” PO Villanueva did not say, “Calm down, calm down, or I’ll run you in.” PO Villanueva believed § 87(2)(b)'s yelling, cursing, and shaking of his steering wheel constituted disorderly behavior. PO Villanueva thought § 87(2)(b) could have been arrested for disorderly conduct because he was causing a scene and putting PO Villanueva in a dangerous position having to do deal with his yelling when there was traffic from the exit of the Cross Bronx Expressway flowing behind her. PO Villanueva thought if § 87(2)(b)'s yelling continued and she needed to ask § 87(2)(b) to step out of his vehicle, the traffic flow behind them would be a dangerous situation. Some other motorists also stopped and PO Villanueva believed those motorists were trying to see what was happening with the interaction between her and § 87(2)(b).

§ 87(2)(b) was grabbing § 87(2)(b)'s shoulder from the back seat at this point as he continued to yell at PO Villanueva. § 87(2)(b) was looking straight ahead and refused to take his documentation and summonses while grabbing and shaking the steering wheel, so PO Villanueva waited for approximately five seconds, and then she reached into § 87(2)(b)'s vehicle through the driver's side window and placed them all on his dashboard. PO Villanueva walked back to the police vehicle and § 87(2)(b) exited his vehicle and approached PO Villanueva with his cell phone out. § 87(2)(b) then said, "You fucking bitch" to PO Villanueva, and walked back towards his vehicle (see Board Review 3).

A person commits disorderly conduct when with the intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof, he obstructs vehicular or pedestrian traffic. N.Y.S. Penal Law §240.20(5) (See Board Review 11). Evidence of actual or threatened public harm is a necessary element of disorderly conduct. People v. Johnson, 22 N.Y.3d 1162, 1164 (2014). The mere expression that one feels aggrieved by the police, even in a loud voice, cannot constitute an offense (see Board Review 13). People v. Square, 872 N.Y.S. 693 (2008 – Crim. Ct. NY County) (see Board Review 12).

It is undisputed that § 87(2)(b) was yelling as he disputed the car stop and summonses he was issued by PO Villanueva. It is also undisputed that § 87(2)(b) refused to change his demeanor after PO Villanueva instructed him to calm down. § 87(2)(b) acknowledged that § 87(2)(b) was yelling and also instructed him to calm down and stop arguing with PO Villanueva. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) stated that he took the summonses from PO Villanueva when she approached him, but she did not hand him the license. PO Villanueva stated that § 87(2)(b) refused to take the summonses and was disputing them. According to PO Villanueva, other motorists stopped their vehicles as § 87(2)(b) continued to yell, curse, and shake his steering wheel while he argued with her about the summonses and, as this incident occurred at the exit of the Cross Bronx Expressway, PO Villanueva noted that she was in a dangerous position having to do deal with his yelling when there was traffic flowing behind her and some other motorists also stopped their vehicles, which she believed was an attempt to try to see what was happening with the interaction between her and § 87(2)(b). She believed that due to his behavior and refusal to take the summonses, if she had to ask him to exit the vehicle, the situation would become more dangerous, creating an element of public harm, which led to her warning, "You're not going to make this any worse, you could be arrested for disorderly conduct."

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Squad: 11

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date